

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
THIRD PARTY RESPONDENTS,

**SAMSUNG ELECTRONICS AMERICA, INC.'S
RESPONSE IN SUPPORT OF MOTION TO WITHDRAW
COUNTERCLAIM**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its undersigned counsel, submits this response to Respondent COSCO Shipping Lines Co., Ltd.’s (“COSCO”) Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint (hereinafter “COSCO Motion”), filed on April 8, 2026 (the “Response”).

COSCO’s Counterclaim and Third-Party Complaint should be dismissed **with prejudice**. While COSCO is correct that SEA is not claiming prejudice from dismissal of COSCO’s improvident counterclaim, SEA has certainly been prejudiced by COSCO’s insistence on pursuing these meritless and wasteful legal strategies. Throughout this proceeding, SEA has repeatedly raised fundamental legal problems with COSCO’s counterclaim, SEA moved to dismiss the counterclaim, and more than once SEA encouraged COSCO to withdraw its counterclaim, with the most recent demand letter sent on March 27, 2026.¹ See March 27 Letter, attached hereto as Exhibit 1.

In its March 27 Letter, SEA directed COSCO’s attention to the March 20, 2026 Order (“March 20 Order”), issued by Administrative Law Judge (“ALJ”) Richard C. Ambrow in *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd.*, in which the ALJ found OOCL’s counterclaim and third-party complaint, which were based on the same theories asserted in the counterclaim here, to be “objectively frivolous.”² The March 20, Order became administratively final on December 29, 2025, and based on that finality, SEA again advised COSCO that it should

¹ Samsung Electronics America, Inc.’s Motion to Dismiss Respondent’s Counterclaim, Dkt. 43; Complainant Samsung Electronics America, Inc.’s Reply in Further Support of Motion to Dismiss Respondent’s Counterclaim, Dkt. 53.

² Dkt. No. 24-17, 2026 WL 794116 at *13 (ALJ March 20, 2026) (Order Denying Third-Party Respondent’s Petition for an Award of Attorneys’ Fees, Denying Complainant’s Petition for Attorneys’ Fees, and Denying Complainant’s Motion to Supplement Its Petition for Attorney Fees).

withdraw the counterclaim and requested that it do so promptly to avoid further unnecessary expenditure of Commission and party resources.

SEA is also mindful of the Presiding Officer's statements during the April 6, 2026, status Conference regarding the number of pending motions in this proceeding. If the Motion is granted, dismissal of the counterclaim and third-party complaint will resolve four of the pending motions in this proceeding. SEA therefore submits that granting the Motion will promote the efficient administration of this proceeding, so long as the dismissal is ordered **with prejudice**. A dismissal with prejudice is legally appropriate for dismissal of meritless claims and practically necessary to bring complete finality and prevent these claims from being advanced in the future.

Respectfully Submitted,

Dated: April 10, 2026

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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EXHIBIT 1
TO SEA'S RESPONSE
IN SUPPORT OF
MOTION TO WITHDRAW
COUNTERCLAIM

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March 27, 2026

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Re: *Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.* (FMC
No.: 24-16) – Withdrawal of Counterclaim

Dear Rebecca and Brian,

We write regarding COSCO's pending counterclaim dated May 12, 2025, executed by the both of you, on behalf of your client, COSCO (the "COSCO Counterclaim"). We urge COSCO to withdraw the counterclaim immediately.

While SEA's motion to dismiss was filed on June 6, 2025, it remains *sub judice* before Presiding Officer Linda S. Crovella. At least Rebecca is fully aware of the litigation surrounding a counterclaim filed against SEA in the matter entitled: 24-17 - *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd.* (the "SEA/OOCL matter"), as she is co-counsel of record in that case. On Friday, March 20, 2026, ALJ Richard Ambrow issued an Order denying SEA's motion for attorney's fees in connection with the prior dismissal of OOCL counterclaim against SEA (which was appealed and remanded, and dismissed again) (the "March 20 Order") (copy enclosed). The March 20 Order confirms that the November 26, 2025 order dismissing the amended counterclaim became administratively final on December 29, 2025.

The March 20 Order summarized OOCL's counterclaim theory as follows:

OOCL filed its Verified Answer ("VA") on December 12, 2024, which also contained the CC. (*See* VAC and CC). The CC alleged that SEC and SEA entered into service contracts with OOCL in 2021 and 2022. (CC, at ¶¶ 2, 4). Among other things, the service contracts permitted SEC and SEA to nominate truckers for inland

transportation (*i.e.*, “customer nominated truckers” or “CNTs”), but made SEC and SEA responsible for any delays caused by CNTs. (CC, at ¶¶ 3, 17). Although OOCL sent invoices to SEC and SEA because they incurred various fees through their untimely CNTs, SEC and SEA never took advantage of OOCL’s dispute resolution policy. To the contrary, SEC and SEA sent a demand for refunds and for waiver of any future charges on October 7, 2022 (the “October 7 Demand”), that lacked any specific details. Although OOCL asked for details, SEC and SEA never provided any, and ultimately filed the VC. (CC, at ¶¶ 18-26). The CC alleged that SEA violated 46 U.S.C. § 41102(a) by knowingly or willfully attempting to obtain ocean transportation of goods at less than applicable rates by an unjust or unfair means by making demands and filing the complaint seeking refunds and/or waiver of future fees. (CC, at ¶¶ 27-42).

March 20 Order at 3.

COSCO’s Counterclaim makes strikingly similar allegations to the OOCL Counterclaim (as amended). The COSCO Counterclaim, in pages 27-41, relies on the purported service contract and emphasizes the CNT language therein. The COSCO Counterclaim has one Count, alleged at paragraph 54 as follows:

Section 10(a)(1) of the Shipping Act of 1984 as amended and in force during the relevant period, codified at 46 U.S.C. § 41102(a), prohibits any person from “knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.”

When reviewing the COSCO Counterclaim and the OOCL Counterclaim, it relies on the same Shipping Act Count and for all intents and purposes is the same. This is not too surprising as the Jeffrey/Fenneman Law + Strategy, PLLC law firm serves as co-counsel in both the SEA/OOCL matter and SEA/ COSCO matters, with Rebecca appearing as counsel of record in both FMC proceedings.

In the SEA/OOCL matter, then presiding officer Chintella, initially dismissed the OOCL Counterclaim with pointed observations as to its lack of viability. The observations concerning this failed counterclaim theory have only gotten sharper since, culminating in the March 20 Order observations issued on Friday. Below are exact quotes from the March 20 Order stating, time and time again, the problems with this theory. In the Conclusion section of the March 20 Order, ALJ Ambrow states, “I find that OOCL’s counterclaim and OOCL’s third-party complaint would be objectively frivolous, and would appear to be a procedural delay tactic, but for the fact that the Commission concluded that it would not be futile to allow OOCL to amend its counterclaim (and, by logical extension, its third-party complaint).” March 20 Order at 15. A statement by an ALJ of the FMC that a pleading is “**objectively frivolous**” should raise alarm bells, especially where essentially the same pleading remains pending in another proceeding, as is the case here. But that

is not the only candid statement ALJ Ambrow made; he supported his concluding remarks with the following observations:

- “There is no question that OOCL’s allegation that SEA and SEC violated section 41102(a) was **weak**.” March 20 Order at 12 (emphasis added).
- “Thus, **there was no legal basis** for OOCL’s counterclaim or OOCL’s third-party complaint.” Id. emphasis added).
- “OOCL appears to argue that because a large company raised a facially-valid dispute, the large company must have harbored a secret plan all along. **At best, that is a weak factual basis for OOCL’s claim.**” Id. at 13 (emphasis added).
- “Because the counterclaim and third-party complaint **were unsupported by any legal authority, and lacked factual support, I would be inclined to find that its allegations were frivolous or objectively unreasonable** but for the fact that the Commission stated that OOCL was “entitled” to file an amended complaint, and that it should be given at least one chance to amend. The Commission also stated that it was not clear that an amended counterclaim (and, by the same logic, an amended third-party complaint) would necessarily be futile.” Id. at 13 (emphasis added).
- “Along the same lines, **I would be inclined to find improper motivation for the counterclaim** and third-party complaint but for the Commission’s remand.” Id (emphasis added).
- “**In light of the weakness of OOCL’s allegations in OOCL’s counterclaim and OOCL’s third-party complaint, even after they were amended, and in light of the fact that two ALJs and the Commission all expressed a dim view of OOCL’s section 41102(a) claims, one could fairly wonder if the only reason OOCL was pursuing its 41102(a) claims was to delay SEA’s claim from advancing procedurally.** Indeed, in my November 26 Order, I questioned whether OOCL had a dilatory motive when OOCL argued that I should allow its AMCC and ATPC to go forward because OOCL suggested that it would continue to appeal and cause further delays to this proceeding.” Id. (emphasis added).
- “As discussed above, **I would be inclined to agree that OOCL pursued a meritless counterclaim** and third-party complaint but for the fact that the Commission permitted OOCL to amend its counterclaim (and, by logical extension, the substantially similar third-party complaint).” Id.

In total, ALJ Ambrow made eight separate statements ranging from “objectively frivolous” to “meritless counterclaim” to describe the OOCL Counterclaim, which, again, is a near mirror image of the COSCO Counterclaim.

SEA request that COSCO withdraw the COSCO Counterclaim immediately, as continued pursuit of this discredited theory needlessly wastes the resources of both the Commission and the parties. As reflected in the ALJ's February 11, 2026 email¹ directing the parties to address outstanding motions at the status conference—and again during the status conference itself—the Presiding Officer here squarely raised whether COSCO intended to continue pursuing its counterclaim in light of the Commission's July 30, 2025 Order affirming dismissal and the November 26, 2025 ALJ Order dismissing the amended counterclaim, which is administratively final. That inquiry was not academic; it plainly invited COSCO to carefully consider the implications of maintaining a counterclaim theory that has been discredited and no further appeal taken. COSCO's decision to nevertheless press forward is particularly precarious in light of the March 20 Order reaffirming the infirmity of this theory.

We request COSCO respond to this request within one week by April 3, 2026. SEA reserves all rights. In the interim, as COSCO has had one week to digest the March 20 Order and taken no action, SEA is filing a notice of supplemental authority.

This is an open communication, not tied to any settlement discussions, and notice is provided it will be included as evidence for future submissions to the FMC. Future submissions include any exceptions to the Commission, motion for attorney's fees, and any other relief.

Best regards,

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¹ "The representative who attends must have authority to make decisions on behalf of the party they represent. The parties should be prepared to address: 1) the status of discovery, and in particular, Complainant's document production and response to interrogatories, as well as the necessity to amend the schedule, issues scheduling depositions and, 2) the **outstanding motions, including whether any positions have changed or modified in light of the Commission's July 30, 2025, Order Affirming Dismissal of Counterclaim in 24-17, and subsequent November 26, 2025, ALJ order dismissing the amended counterclaim and amended third-party complaint, which is administratively final.**" (emphasis added).